

24SMCV00754 24SMCV00754

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-24

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This is an application by Essex to continue the trial and related dates. There is one and only one reason that might be sufficient. That is that counsel states that a recent health issue precludes him from continuing in the case. At the time the trial date was set, the court expressly warned all parties that there would be no continuances absent truly unforeseen and unforeseeable circumstances. The court gave that warning orally and it is in the minute order. A sudden and serious medical condition would qualify as one of those rare circumstances. The court will inquire further in camera by way of the equivalent of a Vesco hearing as to this issue, or the court might have to schedule such a hearing as there likely is no time for it today. If the issue was indeed sudden and recent, and if it does preclude counsel from continuing, that is an unforeseen and unforeseeable circumstance and the trial will need to be continued. That would not, of itself, continue any trial-related dates, nor would it make an untimely summary judgment motion timely.

The court will set a date to inquire on that point only. The other purported reasons do not meet the requirements of this court for a continuance. The court is not trying to be difficult. But the court has 1300 cases on the docket. Because this is an I/C court, it typically takes 3-4 weeks to try a case. So you do the math. Given reasonable absences, it will take the court 100 years to try the cases now on the docket. Of course, that is a false

statistic. We all know that most cases resolve without a trial. But even assuming 95% of the cases resolve without a trial or a continuance, it will take 5 years to try the cases on the docket. In other words, the court simply lacks the capacity to kick cases down the road. In the past, when the court had 800 cases on the docket, the court would grant first continuances for a reasonable amount of time on request. But those days are gone.

So, the motion is CONTINUED due to the health issue only. The court will set a date for a Vesco hearing to discuss the medical issue further. The court will not hear argument today other than to set the hearing date.